

EXAMINATION SCHEME

B.A. L.L.B. (Hons.), Semester- X

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted							Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice				L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks						
1	BAL-1001 (A)	Civil Procedure Code and Limitation Act.	80	32	20	8	0	0	100	6	1	0	7	
2	BAL-1002 (C)	Probation and Parole	80	32	20	8	0	0	100	6	1	0	7	
3	BAL-1003 (C)	Women and Criminal Law	80	32	20	8	0	0	100	6	1	0	7	
4	BAL-1004 (C)	Information Technology Law	80	32	20	8	0	0	100	6	1	0	7	
5	BAL-1005 (B)	Drafting, Pleading and Conveyance	90	36	0	0	10	4	100	6	1	1	8	
TOTAL			410	164	80	32	10	4	500	30	5	1	36	
			L: Lecture T: Tutorial P: Practical											

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FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL
Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

B.A. L.L.B. (HONS.) PART-V SEMESTER - X
PAPER – I CIVIL PROCEDURE CODE AND LIMITATION ACT

UNIT-I Introduction

Concepts

1. Affidavit, order, judgment, degree, plaint, restitution, execution, decree- holder, judgment-debtor, mense profits, written statement.
2. Distinction between decree and judgment and between decree and order

Jurisdiction

1. Kinds, 2. Hierarchy of courts, 3. Suit of civil nature- scope and limits
4. Res subjudice and resjudicata, 5. Foreign judgment – enforcement,
6. Place of suing, 7. Institution of suit, 8. Parties to suit: joinder mis- joinder or non-joinder of parties representative suit, 9. Frame of suit: cause of action
10. Alternative disputes resolution (ADR), 11. Summons

UNIT-II Pleading

1. Rules of pleading, signing and verification, 2. Alternative pleading,
3. Construction of pleadings, 4. Plaint: particulars
5. Admission, return and rejection,
6. Written statement: particulars, rules of Evidence
7. Set off and counter claim: distinction
8. Discovery, inspection and production of documents, 9. Interrogatories
10. Privileged documents, 11. Affidavits

UNIT-III Appearance, Examination, Trial and Suit in particular cases

1. Appearance, 2. Ex-parte procedure, 3. Summary and attendance of witnesses
4. Trial, 5. Adjournments,
6. Interim orders: commission. arrest or attachment before judgment, injunction and appointment of receiver.
7. Interests or costs, 8. Execution - concept General principles
9. Power for execution of decrees, 10. Procedure for execution (section 52-54)
11. Enforcement, arrest and detection (ss 55-56), 12. Attachment (ss 65-64)
13. Sale (ss 65-97), 14. Delivery of property, 15. Stay of execution

Suits in Particular Cases -

1. By or against government (ss 79-82).
2. By aliens and by or against foreign rules or ambassadors (ss 83-87-A)
3. Public nuisance (ss. 91-93)
4. Suits by or against firm
5. Mortgage
6. Interpleader suits
7. Suits relating to public charities
8. Indigent (Pauper) suits.

UNIT-IV Appeals, Review, Reference and Revision

1. Appeals from decree and order general provisions relating to appeal
2. Transfer of cases, 3. Restitution, 4. Caveat, 5. Inherent powers of courts
6. Law Reform : Law Commission on Civil Procedure - Amendments

UNIT-V Limitation

1. The concept- the law assists the vigilant and not those who sleep over the rights.
2. object of the law of Limitation
3. Distinction with laches, acquiescence, prescription.
4. Extension and suspension of limitation
5. Sufficient cause for not filing the proceedings.
6. Illness
7. Mistaken legal advise.
8. Mistaken view of law.
9. Poverty, minority and purdha.
10. Imprisonment
11. Defective vakalatnama
12. Legal liabilities
13. Acknowledgement- essential requisites
14. Continuing tort and continuing breach of contract
15. Foreign rule of limitation : contract entered into under a foreign law

SELECTED BIBLIOGRAPHY:-

1. Mulla, Code of Civil procedure (1999), Universal Delhi
2. C.K. Thakker, Code of Civil Procedure (1999), Universal Delhi
3. M.R. Mallick (ed.) B.B. Mitra on Limitation Act (1998), Eastern Lucknow.
4. Majumdar P.K. and Kataria R.P. Commentary on the Code of Civil Procedure.1908 (1998), Universal Delhi.
5. Saha A.N. The Code of Civil Procedure (2000) Universal Delhi
6. Sarkar Law of Civil Procedure Vols. (2000) Universal Delhi.
7. Universal's Code of Civil Procedure (2000).

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B.A. L.L.B. (HONS.) PART-V SEMESTER - X PAPER II PROBATION AND PAROLE

UNIT-I Criminology

1. The concept of Crime,
2. Nature and scope of criminology
3. Schools of criminology,
4. Causation of Crime (Etiology)

UNIT- II Nature of Punishment

1. Theories of punishments- deterrent, preventive, retributive, reformatory and expiatory theory
2. Kinds of punishment and judicial sentencing,
3. Capital punishment
4. The police system,
5. Criminal laws Courts protection to the accused
6. Strict construction of penal statutes,
7. Penal law not to be retrospective in operation

UNIT-III Organised Crime

1. Definition Main characteristics of organized crime,
2. Organised Predatory Crime
3. Crime Syndicate,
4. Criminal Rackets,
5. Political grafts

UNIT-IV Probation

1. Application of probation – utility and misconception,
2. Conditions of Probation
3. Probation of offenders Act 1958,
4. Power of Court to release certain offenders after admonition
5. Power of Court to release certain offenders on probation of good conduct
6. Power of Court to require released offenders to pay compensation and costs.
7. Restrictions on imprisonment of offenders under twenty-one years of age.
8. Report of probation officer to be confidential
9. Variation of conditions of probation
10. Procedure in case of offender failing to observe conditions of bond
11. Provisions as to Sureties

UNIT-V Parole

1. The concept of Parole and object of parole,
2. Parole and Probation Compared
3. Parole Distinguished from Furlough,
4. Parole in India
5. Structural set up of Parole Boards and their functions
6. Conditions of Parole,
7. Judicial Trend,
8. Parole Violation

SELECT BIBLIOGRAPHY:-

1. Katherine S. Williams, Text Book on Criminology (1997) Blackstone, London.
2. A. Siddique, Criminology, problems and perspectives (1997).
3. D.C. Pandey, Habitual offenders and the law.
4. Prof. N.V. Paranjape criminology and penology.
5. Prof. S.S. Shrivastava Criminology and criminal administration.
6. Prof. V.B. Agrawal and R.K. Raizada Crime and Criminology.
7. Probation of offenders Act. 1958.

B.A. L.L.B. (HONS.) PART-V SEMESTER - X
PAPER – III WOMEN AND CRIMINAL LAW

UNIT-I Introduction

1. Crimes against women, 2. Nature and kinds, 3. International commitments.

UNIT-II Major Hardships to woman and Indian laws

1. Rape, sexual harassment of working women in workplace
2. Indecent representation of women-meaning, protection under Indian laws.

UNIT-III Particular and General offences

1. Dowry death, 2. Assault, 3. Unnatural offences – National protections.

UNIT-IV Special offending act

1. Immoral trafficking, 2. female foeticide
3. kidnapping and abduction – National protections.

UNIT-V Cruelty and violence

1. Cruelty and domestic violence against women - National protections.

SELECTED BIBLIOGRAPHY -

1. Indian Penal Code- Ralanlal Dhirajlal-Wadhwa
2. SITA (Suppression of Immoral Trafficking in Women)
3. Domestic Violence Act, 2005 – Dr. Preeti Mishra
4. Vishaka's Case, Chandrima Das Case.
5. Indira Jaising – Hand book on law of Domestic Violence.
6. Lawyers collective – Law relating to sexual harassment at work place- Universal Delhi.
7. Krishna Pal Malik – Women & Law – Allahabad Law Agency
8. Manjula Batra – Women and Law - Allahabad Law Agency.

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B.A. L.L.B. (HONS.) PART-V SEMESTER - X PAPER – IV INFORMATION TECHNOLOGY LAW

UNIT-I Introduction

1. Concept and Definition – Computer, Digital Signature, Key Pair, Subscriber, Verification
2. Globalisation and ECommerce – U.S./U.K.
3. I.T. Act 2000 – Aim and object, E-mail, Torts & contract on Internet, Offences and Cyber Crimes, Stalking, Hacking, tempering, Junk Spaming –publication of obscene material, offences of computer, worms & virus Defamation and internet
4. Loop holes in I.T. Act.

UNIT-II Adjudication and penalties

1. Powers of Police Officers
2. The Cyber Regulations Appellate Tribunal
3. Appeal to High Court
4. Compounding of contravention and Recovery of penalty

UNIT-III Protection of Consumers and Victims

1. Protection of consumer & unfair Terms
2. Protection of person when person is not consumer
3. Proposed Amendments
4. R.B.I. Guideline for A.T.M. Transactions

UNIT-IV International sphere of Global Regime

1. Civil Jurisdictions
2. Minimum contact Doctrine in U.S.A.
3. E mail on Internet
4. Danger for computer software failure

UNIT-V Right of Privacy (on Internet) Media Law

1. Right to Privacy – Breach of (Defamation, Tresspass, Nuisance
2. Breaching confidence and harassment
3. Privacy on Internet
4. Real Victims of Virtual Crime

SELECT BIBLIOGRAPHY

1. I.T. Tech. Law : Gupta & Agrawal – Premier Publication, Allahabad.


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B.A. L.L.B. (HONS.) PART-V SEMESTER - X
PAPER- V DRAFTING, PLEADING AND CONVEYANCE

Note: 1. This paper shall have Diary of 90 (45+45) marks and viva- voce of 10 marks.

1. (a) Drafting : General principles of drafting and relevant substantive rules shall be taught
- (b) Pleadings :-
 - (i) Civil : Complaint, Written Statement, Interlocutory Application, Original Petition, Affidavit, Execution Petition, Memorandum of Appeal and Revision, Petition under Article 226 and 32 of the Constitution of India.
 - (ii) Criminal : Complaint, Criminal Miscellaneous petition, Bail Application, Memorandum of Appeal and Revision.
 - (iii) Conveyance : Sale Deed, Mortgage Deed, Lease Deed, Gift Deed, Promissory Note, Power of Attorney, Will, Trust Deed
 - (iv) Drafting of writ petition and PIL petition

The course will be taught through class instructions and simulation exercises, preferably with assistance of practicing lawyers/retired judges.

Apart from teaching the relevant provisions of law, the course may include not less than 15 practical exercises in drafting carrying a total of 45 marks (3 marks for each) and 15 exercises in conveyancing carrying another 45 marks (3 marks for each exercise) remaining 10 marks will be given for viva voce.

SELECT BIBLIOGRAPHY

1. R.N. Chaturvedi : Pleading, Drafting and Conveyancing.
2. Manohar Murli : The art of Conveyancing and Pleading.